

5. **Assignment.** — After notice of an assignment the trustee cannot safely pay either principal or *interest* to the assignor (*d*) though the assignment be by way of mortgage only, for though a mortgagor in possession of real estate is not accountable for the *rents* until notice of the mortgagee's intention to enter, it cannot be assumed that the same rule will apply to personal estate in the hands of a trustee, as to which it has been said that the act of giving notice to the trustee is equivalent to taking possession (*e*). [It has even been held that where a first mortgagee of a leasehold house had notice of a second charge, and the property was subsequently sold by the mortgagor and the first mortgagee concurred in the sale, and allowed the balance of the purchase-money after satisfying his mortgage to be paid to the mortgagor, he was liable to the second mortgagee (*f*).]

[*346] *6. **Impeachable deeds.** — An assignment is sometimes, though not void *per se*, yet of an *impeachable* character, as where there is a suspicion of the undue exercise of parental influence. In these cases it is conceived that while the deed remains unimpeached, the trustee may safely act on the assumption of its validity (*a*).

7. **Assignment with receipt clause.** — If the assignment confer on the assignee a power of signing receipts, the production of the deed with a receipt entitles the assignee to call for payment without tendering a release (*b*).

8. **Death of cestui que trust.** — If the *cestui que trust* be dead the trustee must pay to his personal representative, and if he mix himself up with questions arising out of the *cestui que trust's* will, and so refuse to pay to the personal representative, he will be saddled with the costs of a suit for recovery of the fund (*c*).

9. **Divorce of cestui que trust.** — If the *cestui que trust* be a *feme* formerly married, but whose marriage has been dis-

(*d*) Cresswell v. Dewell, 4 Giff. 460.

(*a*) See Beddoes v. Pugh, 26 Beav.

(*e*) See Loveridge v. Cooper, 3 407.

Russ. 58.

(*b*) Foligno's Mortgage, 32 Beav.

[(*f*) West London Commercial 131.

Bank v. Reliance Permanent Building Society, 27 Ch. D. 187.]

(*c*) Smith v. Bolden, 33 Beav. 262.